

Amendment No. 1 to HB0164

Todd
Signature of Sponsor

AMEND Senate Bill No. 128*

House Bill No. 164

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-4-101(a)(1), is amended by adding the following language as a new subdivision:

() "Animal chiropractic":

(i) Means the evaluation and treatment of a non-human's vertebral or extremity joint dysfunction through spinal, joint, or musculoskeletal manipulative therapy and soft tissue therapy; and

(ii) Does not include:

(a) Performing surgery;

(b) Dispensing or administering of medications; or

(c) Performing veterinary medicine, as defined in § 63-12-103, other than the evaluation and treatment of a non-human's vertebral or extremity joint dysfunction through spinal, joint, or musculoskeletal manipulative therapy and soft tissue therapy;

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 4, Part 1, is amended by adding the following as a new section:

(a) The board shall adopt rules, pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, for:

(1) Regulating the performance of animal chiropractic by a chiropractic physician;

(2) Establishing educational standards for certification of a chiropractic physician to perform animal chiropractic. The educational standards must include obtaining a certificate in animal chiropractic from the American Veterinary Chiropractic Association; and

(3) Establishing health and sanitation standards for a facility where a chiropractic physician performs animal chiropractic and human patients are treated.

(b) A chiropractic physician may apply to the board for certification to perform animal chiropractic. An applicant for certification must:

(1) Provide the board with proof, satisfactory to the board, that the applicant meets the educational standards established pursuant to subdivision (a)(2); and

(2) Meet any other requirements for certification established by the board pursuant to subdivision (a)(1).

(c) The board shall maintain on its website a list of chiropractic physicians who are certified in good standing to perform animal chiropractic.

SECTION 3. Tennessee Code Annotated, Section 63-4-112(c)(3), is amended by designating the existing language as subdivision (c)(3)(A) and adding the following as a new subdivision:

(B) In addition to the chiropractic education required pursuant to subdivisions (c)(2) and (c)(3)(A), a chiropractic physician who is certified to perform animal chiropractic shall annually complete a minimum of six (6) additional hours of continuing education in animal chiropractic that are approved by the board.

SECTION 4. Tennessee Code Annotated, Section 63-4-122, is amended by adding the following as a new subsection:

(c)

(1) Except as provided in subdivision (c)(2), it is a violation of this chapter for a person or business entity to advertise that the person or business entity provides chiropractic care, chiropractic services, or chiropractic therapy unless that care, service, or therapy is provided by or under the direction of a licensed chiropractic physician.

(2) It is not a violation of this chapter for a licensed veterinarian, as defined in § 63-12-103, who is certified pursuant to SECTION 6, to advertise that the licensed veterinarian is certified to provide animal chiropractic.

(3) This subsection (c) does not restrict a person licensed or certified under this title, or other law, from engaging in the profession for which that person is licensed or certified; provided, the person does not advertise that the person is a chiropractic physician or a provider of chiropractic care, services, or therapy.

SECTION 5. Tennessee Code Annotated, Section 63-12-103, is amended by adding the following language as a new subdivision:

() "Animal chiropractic" means the evaluation and treatment of a non-human's vertebral or extremity joint dysfunction through spinal, joint, or musculoskeletal manipulative therapy and soft tissue therapy;

SECTION 6. Tennessee Code Annotated, Title 63, Chapter 12, Part 1, is amended by adding the following as a new section:

(a) The board shall adopt rules, pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, for:

(1) Regulating the performance of animal chiropractic by a licensed veterinarian; and

(2) Establishing educational standards for certification of a licensed veterinarian to perform animal chiropractic. The educational standards must

include obtaining a certificate in animal chiropractic from the American Veterinary Chiropractic Association.

(b) A licensed veterinarian may apply to the board for certification to perform animal chiropractic. An applicant for certification must:

(1) Provide the board with proof, satisfactory to the board, that the applicant meets the educational standards established pursuant to subdivision (a)(2); and

(2) Meet any other requirements for certification established by the board pursuant to subdivision (a)(1).

(c) The board shall maintain on its website a list of licensed veterinarians who are certified in good standing to perform animal chiropractic.

SECTION 7. Tennessee Code Annotated, Section 63-12-120, is amended by adding the following as a new subsection:

() In addition to the continuing education required pursuant to subsection (a), a licensed veterinarian who is certified to perform animal chiropractic shall annually complete a minimum of six (6) additional hours of continuing education in animal chiropractic that are approved by the board.

SECTION 8. Tennessee Code Annotated, Title 63, Chapter 12, Part 1, is amended by adding the following as a new section:

It is not a violation of this chapter for a chiropractic physician, as defined in § 63-4-101(b), who is certified pursuant to SECTION 2, to advertise that the chiropractic physician is certified to provide animal chiropractic.

SECTION 9. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes take effect January 1, 2026, the public welfare requiring it.